(2) The valve's operating mechanism has been thoroughly examined with particular attention to the seat;

(3) All defective or worn parts have been replaced with new parts;

(4) The valve has been reassembled and painted;

(5) A hydrostatic test at double the rated water working pressure of the valve has been applied and the valve was found to be free from leaks, defects, and in free working order.

"Used valve" means any valve which had been, at any time, incorporated into or connected to a piping system, machinery, or operating mechanism, and which has not been reconditioned as set forth above.

"Manufacturer's net maximum price to jobbers" means the manufacturer's published list price less the applicable published ("J" sheet) discount extended by the manufacturer on sales to jobbers during the period October 1–15, 1941.

(c) *Discounts and allowances.* The maximum prices established in paragraph (a) above shall be subject to at least the same cash discounts extended by the seller during the month of March 1942, to his various classes of customers.

(d) *Delivery.* The maximum prices established in paragraph (a) above are f. o. b. seller's usual place of business, but shall include free local delivery within customary free local delivery zones recognized as such by the seller during the month of March 1942.

(e) *Tagging requirements.* Every person selling a reconditioned valve under this section 6.33, must attach to each valve a tag having substantially the following guarantee printed thereon:

This valve has been reconditioned in accordance with the provisions of section 6.33 of Revised Supplementary Regulation No. 14 to the General Maximum Price Regulation and this valve is fully guaranteed to operate at the working pressures for which it was originally designed.

(f) *Installed sales.* The sale of a reconditioned valve or a used valve on an installed basis is not covered by this section. Such a sale is covered by the applicable Maximum Price Regulation.

(g) *Notification of purchasers of existence of this section 6.33.* Every person selling reconditioned valves or used valves subject to this section shall, before making an initial sale to each purchaser, notify each purchaser of the existence of this section and, upon request of such purchaser, make available a copy of it for examination.

(h) *Records.* Every person selling reconditioned valves or used valves subject to this section, shall have available for inspection by the Office of Price Administration for so long as the Emergency Price Control Act of 1942, as amended, remains in effect, a record of each sale made under this section showing the date of the sale, the name and address of the purchaser, the manufacturer's plate number of the original valve, the list price of the original valve, the discount extended, as published by the manufacturer in the "J" discount sheet or "Resale" discount sheet, the further discount allowed by the seller as set forth in paragraphs (a) and (c) and the point of delivery of the shipment.

(i) *Reports.* All persons making sales subject to the provisions of this section shall submit such reports as the Office of Price Administration may at any time request, subject to the approval of the Bureau of the Budget, in accordance with the Federal Reports Act of 1942.

(j) *Geographical applicability.* This section 6.33 applies only in the 48 states of the United States and the District of Columbia.

This Amendment No. 92 shall become effective February 21, 1944.

NOTE: The reporting requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

(56 Stat. 23, 765; Pub. Law 151, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 16th day of February 1944.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 44–2282; Filed, February 16, 1944; 11:36 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Navy

PART 6—SECURITY OF PORTS AND THE CONTROL OF VESSELS IN THE NAVIGABLE WATERS OF THE UNITED STATES

WAIVER OF COMPLIANCE WITH CERTAIN PROVISIONS

The Acting Secretary of the Navy having by order dated October 1, 1942 (7 F.R. 7979), waived compliance with the navigation and vessel inspection laws administered by the United States Coast Guard, in the case of any vessel engaged in business connected with the conduct of the war, to the extent and in the manner that the Commandant, United States Coast Guard, shall find to be necessary in the conduct of the war.

Now therefore, I hereby find it to be necessary in the conduct of the war that there be waived compliance with § 6.20 in the case of any vessel engaged in business connected with the conduct of the war.

R. R. WAESCHE,
Commandant.

FEBRUARY 15, 1944.

[F. R. Doc. 44–2285; Filed, February 16, 1944; 11:32 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office (Appendix)

[Public Land Order 206]

FLORIDA

REVOCATION OF EXECUTIVE ORDER WITHDRAWING PUBLIC LANDS

Revocation of Executive Order No. 4366 of January 14, 1926, withdrawing public lands.

By virtue of the authority contained in section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U.S.C., title 43, sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 4366 of January 14, 1926, withdrawing public lands in Florida for classification and in aid of legislation, is hereby revoked, the lands thus released becoming subject to the provisions of Executive Order No. 6964 of February 5, 1935, withdrawing public lands in Florida and other States for classification and other purposes.

HAROLD L. ICKES,
Secretary of the Interior.

FEBRUARY 3, 1944.

[F. R. Doc. 44–2248; Filed, February 16, 1944; 9:26 a. m.]

TITLE 46—SHIPPING

Chapter III—War Shipping Administration

[G. O. 5, Rev.]

PART 304—LABOR

PACIFIC COAST MARITIME INDUSTRY BOARD

Whereas by Executive Order No. 9054 dated February 7, 1942, as amended by Executive Order No. 9244, dated September 16, 1942, the President established the War Shipping Administration in order to assure the most effective utilization of the shipping of the United States for the successful prosecution of the war: and

Whereas it is essential in order to achieve the objectives of the said Executive orders that the loading and discharging of vessels be carried out with the maximum possible degree of efficiency.

Now therefore by virtue of the power vested in me by the aforesaid Executive orders, *It is hereby ordered that:*

General Order 5, as amended, be further amended and revised by striking out §§ 304.1 to 304.7 inclusive, and substituting in lieu thereof the following:

Sec.
304.1 Creation of Pacific Coast Maritime Industry Board.
304.2 Membership of the Board.
304.3 Delegation of authority.
304.4 Collective bargaining agreements.
304.5 Surveys.
304.6 Rules and regulations.
304.7 Reports to and delegation of functions by the Administrator.

AUTHORITY: §§ 304.1 to 304.7, inclusive, issued under E.O. 9054, 9244, 7 F.R. 837, 7327.

§ 304.1 *Creation of Pacific Coast Maritime Industry Board.* There is hereby created a Pacific Coast Maritime Industry Board (hereinafter referred to as the Board) as an agency of and within the War Shipping Administration.

§ 304.2 *Membership of the Board.* The Board shall consist of five members, namely, a Chairman, (and a Vice-Chairman to act in his absence), two representatives of employers of longshore labor on the Pacific Coast and two repre-

sentatives of longshore unions on the Pacific Coast. However, two representatives of longshore unions shall be chosen from the A. F. of L. Union of longshoremen to serve on the Board as the two union representatives in matters arising in ports in which the A. F. of L. Union represents the longshoremen for purposes of collective bargaining and two representatives of longshore unions shall be chosen from the C. I. O. Union of longshoremen to serve on the Board as the two union representatives in matters arising in ports in which the C. I. O. Union represents the longshoremen for purposes of collective bargaining.

(a) The Chairman shall be appointed by the Administrator.

(b) The representatives of the employers and the unions shall be appointed by the Administrator. He may also designate two employer alternates and four union alternates. The four union alternates shall be divided equally between the A. F. of L. and C. I. O. unions. The Administrator may at any time revoke such appointments or designations of representatives or alternates and make new appointments or designations.

(c) The Vice-Chairman shall be selected by the Chairman with the approval of the Administrator. He shall perform such duties, activities and functions as may be assigned to him by the Chairman, shall act as Chairman in the absence of the Chairman and when serving in such capacity shall have all powers granted herein to the Chairman.

§ 304.3 *Delegation of authority.* Subject to such directives as may be issued and such policies as may be determined by the Administrator, the Board shall have all of the powers vested in the Administrator.

(a) To coordinate the efforts of the employer and employee groups in the longshore industry on the Pacific Coast for the purpose of increasing efficiency in loading and discharging vessels in that area in furtherance of the successful prosecution of the war.

(b) To render decisions and make rules, on its own motion, on matters respecting the registration of employees, recruiting and training of new employees, emergency transportation of employees from port to port to meet labor shortages, dispatching rules and procedures, organization and duties of dispatching hall staffs, health, safety and welfare of employees, penalizing of employers and employees for violations of the decisions or rules of the Board, maximum utilization of labor, sizes of sling loads, the right to use labor saving equipment, organization and composition of gangs and responsibilities and authority of various employees, including as to those matters specified in this paragraph (b) the right to modify or suspend any provision or provisions in the applicable collective bargaining agreements, local working and dispatching rules or other agreements and port practices, resulting either from unilateral or bilateral action: *Provided, however,*

(1) That any such decision or rule shall be effective only for the duration of the war, and

(2) That the authority to make any such decision or rule shall be limited to matters affecting the efficiency of stevedoring operations on the Pacific Coast in connection with the successful prosecution of the war as to which effect, in the event of any dispute with respect thereto, the Administrator for all purposes hereunder shall be the sole judge, and

(3) That if the employer or employee groups or any of them, feel aggrieved by any such decision or rule, they may, within thirty (30) days after the issuance of such decision or rule, submit the matter to an arbitrator selected in the manner provided in their collective bargaining agreement, in which event such decision or rule shall remain in force as announced until the decision of such arbitrator becomes final and effective. The Board shall have the right in connection with any such arbitration to present to the arbitrator its reasons for making the decision or rule involved in such matter.

(c) To attempt to mediate the differences that may exist between the employer and employee groups in respect to any dispute arising under their respective collective bargaining agreements or otherwise, which, short of arbitration or actual steps taken leading thereto, are not settled by such groups under the grievance machinery provided in their agreements.

(d) To arbitrate any dispute, arising under the collective bargaining agreements or otherwise between the employer and the employee groups, which, short of other arbitration or steps actually taken leading thereto, are not settled by such groups under the grievance machinery provided in their agreements: *Provided,*

(1) That the parties to such dispute mutually agree in writing that such matter shall be submitted to the Board for arbitration and that the decision of the Board shall be final and conclusive on the issues submitted and shall be binding upon the parties thereto, and

(2) That the Administrator specifically authorizes the Board in each such instance to accept the arbitration of such dispute.

§ 304.4 *Collective bargaining agreements.* Subject to decisions and rules made by the Board pursuant to § 304.3 (b) hereof, existing collective bargaining agreements shall continue in full force and effect.

§ 304.5 *Surveys.* The Board shall from time to time, as the Administrator directs, conduct surveys and make inspections of the loading and discharging of vessels in Pacific Coast ports for the purpose of disclosing facts affecting the efficiency of stevedoring operations on the Pacific Coast. Copies of all such surveys and inspections shall be transmitted to the Administrator. The Board is authorized to require employers to file copies of all hatch logs to aid in determining the efficiency of stevedoring operations and to serve as a guide in making surveys and inspections.

§ 304.6 *Rules and regulations.* The Board shall have power to promulgate procedural and administrative rules and regulations appropriate for the performance of its duties.

§ 304.7 *Reports to and delegation of functions by the Administrator.* (a) The Board shall from time to time report to the Administrator on its activities hereunder and on the status of the efficiency of the loading and discharging of vessels on the Pacific Coast, in so far as such operations are related to the prosecution of the war.

(b) The Administrator may delegate to such person or persons as he may hereafter designate any or all functions on his part to be performed hereunder.

E. S. LAND,
Administrator.

FEBRUARY 15, 1944.

[F. R. Doc. 44-2276; Filed, February 16, 1944; 11:29 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 178, Amdt. 2]

PART 95—CAR SERVICE

USE OF REFRIGERATOR CARS FOR FATS AND OILS, ETC.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 14th day of February, A. D. 1944.

Upon further consideration of the provisions of Service Order No. 178 (9 F.R. 542) of January 11, 1944, as amended (9 F.R. 1184), and good cause appearing therefor:

It is ordered, That Service Order No. 178 (9 F.R. 542) of January 11, 1944, as amended (9 F.R. 1184), be, and it is hereby, amended by substituting the following paragraph (a) in lieu of paragraph (a) of § 95.328, *Use of refrigerator cars for certain commodities prohibited:*

(a) No common carrier by railroad subject to the Interstate Commerce Act shall furnish or supply a refrigerator car or cars for loading with, or transport or move a refrigerator car or cars loaded with lard, lard compounds, lard substitutes, rendered pork fats, vegetable oil shortening, cooking and salad oil, animal tallow, dried fish, dried or powdered skim milk, concentrated citrus juice, empty beer containers, dried or evaporated fruits, fig paste, fig powder, or fig pulp, processed cheese in glass or metal containers, paraffine wax, or palm or palmetto leaves or buds. (40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U.S.C. 1 (10)-(17))

It is further ordered, That this order shall become effective at 12:01 a. m., Feb-